Fifth Amendment. The court rejected petitioner's argument that the collective entity doctrine does not apply when a corporation is so small that it constitutes nothing more than the individual's alter ego.

The United States Court of Appeals for the Fifth Circuit affirmed, citing *Bellis* v. *United States*, 417 U. S. 85, 88 (1974), for the proposition that a corporation's records custodian may not claim a Fifth Amendment privilege no matter how small the corporation may be. The Court of Appeals declared that *Bellis* retained vitality following *United States* v. *Doe*, 465 U. S. 605 (1984), and therefore, "Braswell, as custodian of corporate documents, has no act of production privilege under the fifth amendment regarding corporate documents." *In re Grand Jury Proceedings*, 814 F. 2d 190, 193 (1987). We granted certiorari to resolve a conflict among the Courts of Appeals.[2] 484 U. S. 814 (1987). We now affirm.

There is no question but that the contents of the subpoenaed business records are not privileged. See *Doe*, *supra*; *Fisher* v. *United States*, 425 U. S. 391 (1976). Similarly, petitioner asserts no self-incrimination claim on behalf of the corporations; it is well established that such artificial entities are not protected by the Fifth Amendment. *Bellis*, *supra*. Petitioner instead relies solely upon the argument that his

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[2] Compare *In re Grand Jury Proceedings (Morganstern)*, 771 F. 2d 143 (CA6) (en banc), cert. denied, 474 U. S. 1033 (1985); *In re Grand Jury Subpoena (85–W–71–5)*, 784 F. 2d 857 (CA8 1986), cert. dism'd *sub nom. See* v. *United States*, 479 U. S. 1048 (1987); *United States* v. *Malis*, 737 F. 2d 1511 (CA9 1984); *In re Grand Jury Proceedings (Vargas)*, 727 F. 2d 941 (CA10), cert. denied, 469 U. S. 819 (1984), which have refused to recognize a Fifth Amendment privilege, with *United States* v. *Antonio J. Sancetta, M. D., P. C.*, 788 F. 2d 67, 74 (CA2 1986); *In re Grand Jury Matter (Brown)*, 768 F. 2d 525 (CA3 1985) (en banc); *United States* v. *Lang*, 792 F. 2d 1235, 1240 (CA4), cert. denied, 479 U. S. 985 (1986); *In re Grand Jury No. 86–3 (Will Roberts Corp.)*, 816 F. 2d 569, 573 (CA11 1987); *In re Sealed Case*, 266 U. S. App. D. C. 30, 832 F. 2d 1268 (1987), which have recognized a Fifth Amendment privilege.